able foodstuffs, cigarettes, clothing, soaps and shaving preparations, medicinals and vitamins, and similar items of a relief nature. A sheet of paper containing a list of the enclosed commodities must be included in the parcel, but no other written or printed matter of any kind may be included therein.

(2) *Gift parcels to prisoners of war in custody of Czechoslovakia.* Commodities which may be included in gift parcels sent under this general license to enemy prisoners of war held by the armed forces of Czechoslovakia are restricted to nonperishable foodstuffs, cigarettes, clothing, soaps, and shaving preparations, medicinals and vitamins, and similar items of a relief nature. No written or printed matter of any kind shall be included in any parcels.

Not more than one such gift parcel may be sent by the same donor to the same prisoner of war in any one calendar week.

(3) *Gift parcels to prisoners of war in custody of Poland.* No gift parcel may be sent under this general license to enemy prisoners of war held by the armed forces of Poland unless the following information is shown, in writing or otherwise, on the address side of the parcel: the name and address of the prisoner of war, addressed in care of the Polish Red Cross, Warsaw, Poland, and the name and address of the sender.

Commodities which may be included in a gift parcel are restricted to nonperishable foodstuffs, cigarettes, clothing, soaps and shaving preparations, medicinals and vitamins, and similar items of a relief nature. No written or printed matter of any kind shall be included in any parcels.

Not more than one such gift parcel may be sent by the same donor to the same prisoner of war in any one calendar week.

(d) *General license designation.* No gift parcel shall be mailed under this section unless the symbol "Prisoner of War—Gift Parcel" is written on the address side of the parcel and on any required customs declaration.

§ 371.27 *General License G–UNO*—(a) *Description.* A general license designated G–UNO is hereby established authorizing, subject to the other provisions of this section, the exportation of office supplies, equipment, material, and other articles necessary to carry on the official business of the United Nations Organization and the International Bank for Reconstruction and Development.

(b) *Consignors and consignees.* Shipments under the provisions of this general license may be made only by officials of the Transportation Service of the United Nations Organization and by officials of the International Bank for Reconstruction and Development. Shipments by the United Nations Organization under this general license must be consigned to the United Nations Organization, its organs, or any of its specialized agencies. Shipments by the World Bank for Reconstruction and Development under this general license must be consigned to its branch offices, field offices, or its officials located abroad.

(c) *Ports of exit.* (1) No exportation may be made by the United Nations Organization under this general license from any port of exit except New York, N. Y., Baltimore, Md., Portland, Oreg., and San Francisco, Calif.

(2) No exportations may be made by the International Bank for Reconstruction and Development under this general license from any port of exit except New York, N. Y., Baltimore, Md., Miami, Fla., New Orleans, La., San Francisco, Calif., and Buffalo, N. Y.

Part 372—Provisions for Individual and Other Validated Licenses

Sec.

372.1 Applicability and general provisions.
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Authority: §§ 372.1 to 372.17 issued under Pub. Law 11, 81st Cong.; E. O. 9630, Sept. 27, 1945, 10 F. R. 12245, 3 CFR, 1945 Supp.; E. O. 9919, Jan. 3, 1948, 13 F. R. 59, 3 CFR, 1948 Supp.

§ 372.1 *Applicability and general provisions*—(a) *Definition of "validated license".* Wherever reference is made in this part to application for licenses or to licenses granted or issued upon application, the reference is to validated licenses as distinguished from the general licenses established in Part 371. The term "validated license" means an individual or other type of export license or any other document authorizing exportation granted or issued by or under the authority of the Department of Commerce.

(b) *Applicability of provisions.* The provisions of this part (and insofar as consistent with the provisions of this part, all of the other provisions of Parts 370 to 399, inclusive) shall apply to applications for and individual licenses issued by the Department of Commerce. An individual license is a validated license authorizing the exportation of the quantity of those commodities described therein from a designated licensee to a designated consignee.

The provisions of this part shall also apply equally to other types of validated licenses, and applications therefor, insofar as consistent with the provisions of Parts 374 to 399, inclusive, relating to such other types of validated licenses.

(c) *Exportations requiring license.* The commodities included on the Positive List of Commodities (Part 399) may not be exported to foreign destinations other than Canada (including Newfoundland and Labrador) except pursuant to general, individual, or other type of license granted or issued upon application or established by the Department of Commerce. No exportation of any commodity, whether or not included on the Positive List of Commodities, may be made to any destination in Country Group R, as set forth in § 371.3 (a), unless and until a license therefor has been granted or issued upon application by the Department of Commerce, except where authorized by the provisions of an established general license as set forth in Part 371, and except where authorized by the provisions of a footnote on the Positive List of Commodities, and except as provided in § 370.2 with respect to shipments by the United States armed forces.

(d) *Special provisions for certain commodities.* Special provisions for certain commodities are set forth in Part 373.

(e) *Orders.* No application for an export license shall be made unless and until the applicant has an order for export for the commodities covered by the application.

The term "order" as used herein means an order for export placed with an exporter in the United States by an importer in a foreign country which, if accepted by the exporter, will result in a binding contract between the exporter and the importer. While the terms of the order may be conditioned, such terms must be ascertainable and certain; for example, (1) the terms of payment may provide a price dependent upon the market price at the time of delivery; (2) the time or place of delivery may be dependent upon an event in the future, etc. An "order" is more than a mere business inquiry relating to the possible purchase of merchandise, although it need not be an agreement which can be presently executed.

Furthermore, while orders may be conditioned upon the issuance to the exporter of an export license by the Department of Commerce or the issuance to the importer of an import permit or exchange permit by his government, or such other government document as may be required, such orders for export would still be considered as orders within the meaning of these provisions.

(f) *Amendment of license to conform with orders held.* If at any time a licensee does not hold orders for export received by him prior to the validation date of the license, and calling for an exportation which could be effected under that license, in an amount equal to, or in excess of, the unshipped balance permitted under the license, such licensee shall return the license at once to the Department of Commerce for amendment to the quantity for which he holds such orders.

It is not intended to deny to a licensee because of order cancellations the opportunity to export afforded the licensee by the license which covered the canceled orders. If such exporter possesses new orders against which he wishes to ship quantities equivalent to those canceled, he should submit with any new application (for no more than the canceled